

24CV00307 Rosa Munoz Hurtado et al vs Attilio Macrito, DO et al

County: santa-barbara

Division: Civil Law & Motion

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Hearing date: 2026-08-21

Motion: Petition for Approval of Compromise of Claim

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Case Number

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Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/21/2026 - 10:00

Nature of Proceedings

Petition for Approval of Compromise of Claim

Tentative Ruling

For all reasons discussed herein, the amended petition of petitioner Cassandra Ruiz for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability is denied without prejudice.

Background:

Plaintiffs Rosa Munoz Hurtado (R Hurtado) and Juan Manuel Hurtado (J Hurtado) (collectively, Plaintiffs) allege in this case that on January 22, 2023, at Pueblo Radiology Medical Group (the Group) located in Santa Barbara, California, Attilio Macrito, D.O. (Macrito), misread or misinterpreted a brain CT scan which caused R Hurtado to suffer a stroke. R Hurtado is now permanently disabled and will need twenty-four hour care for the remainder of her life.

On January 22, 2024, Plaintiffs filed their complaint against defendants Macrito and the Group asserting one cause of action for negligence.

Macrito and the Group filed an answer to the complaint on March 28, 2024, generally denying its allegations and asserting thirty-eight affirmative defenses.

On September 10, 2025, the dismissal of the Group, with prejudice, was entered as requested by Plaintiffs.

On September 11, Plaintiffs filed an amendment to their complaint substituting Pueblo Radiology Associates, Inc., (Pueblo), for the fictitious name Doe 1.

On September 25, the court entered an order appointing Cassandra Ruiz (Ruiz) guardian ad litem of R Hurtado.

On October 22, Pueblo filed an answer to the complaint, generally denying its allegations and asserting thirty-eight affirmative defenses.

On April 27, 2026, Plaintiffs filed a notice of conditional settlement of the entire case.

On July 6, the court entered an order (the Ex Parte Order) granting the ex parte application of Ruiz to specially set a hearing on a forthcoming petition for approval of compromise of claim or action for July 31, 2026; shortening the time for notice and service of the forthcoming petition to July 10; and ordering that any opposition to the petition be filed and served by July 24.

On July 10, Ruiz filed a petition (the Petition) for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability.

On July 22, Ruiz filed an amended petition (the Amended Petition) for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability.

The court has no record of the filing of any opposition to the Petition or Amended Petition with the court.

Prior to the July 31, 2026, hearing on the Amended Petition, the court posted a tentative ruling to continue that hearing to permit Ruiz an opportunity to address, correct, or explain the issues and deficiencies or ostensible deficiencies described in that tentative ruling.

On July 31, Ruiz filed a supplemental brief “[p]ursuant to” the court’s tentative ruling “to address each of the issues identified by the [c]ourt.” (Supplemental Brief at p. 1, l. 27 – p. 2, l. 3.)

At the hearing on the Amended Petition, counsel for Ruiz requested that the court review the supplemental brief filed on July 31 and consider it as argument as to the tentative ruling set forth above. After that hearing, the court entered a minute order granting the request of Ruiz and continuing the hearing to August 21, 2026.

Analysis:

“The ... guardian ad litem so appearing for any ... person who lacks legal capacity to make decisions ... shall have power, with the approval of the court in which the action or proceeding is pending, to compromise the same, to agree to the order or

judgment to be entered therein for or against the ward or conservatee, and to satisfy any judgment or order in favor of the ward or conservatee or release or discharge any claim of the ward or conservatee pursuant to that compromise.” (Code Civ. Proc., § 372, subd. (a)(3).) Though Code of Civil Procedure section 372 “empowers a guardian ad litem to settle the incapacitated party’s claim[,] ... the settlement is not final or binding until the agreement is approved by the trial court in which the claim was brought.” (Carachure v. Scott (2021) 70 Cal.App.5th 16, 31.)

“A petition for court approval of a compromise ... under Code of Civil Procedure section 372 must comply with [California Rules of Court], rules 7.950 or 7.950.5, 7.951, and 7.952.” (Cal. Rules of Court, rule 3.1384(a).) Those rules require the petition to be submitted on “a completed Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person With a Disability (form MC-350)”; to be verified by the petitioner; and to “contain a full disclosure of all information that has any bearing on the reasonableness of the compromise, covenant, settlement, or disposition.” (Cal. Rules of Court, rule 7.950; Barnes v. Western Heritage Ins. Co. (2013) 217 Cal.App.4th 249, 256, fn. 4.)

“If the petitioner has been represented or assisted by an attorney in preparing the petition for approval of the compromise of the claim or in any other respect with regard to the claim, the petition must disclose” the information set forth in rule 7.951. (Cal. Rules of Court, rule 7.951(1)-(6).) “The person petitioning for approval of the compromise of the claim on behalf of the minor or person with a disability and the minor or person with a disability must attend the hearing on the petition unless the court for good cause dispenses with their personal appearance.” (Cal. Rules of Court, rule 7.952(a).)

The operative Amended Petition is submitted on the required form, is verified by Ruiz, and shows that Ruiz is the granddaughter of R Hurtado who is 76 years of age. (Amended Petition, ¶¶ 1 & 2(b), (c).) The Amended Petition also shows that R Hurtado does not have a conservator of the estate, and that R Hurtado’s claim will be compromised or settled without a trial. (Amended Petition, ¶¶ 2(f) & 3(b).)

As to the issue addressed in the supplemental brief in regard to whether the timing of the filing of the Amended Petition has prejudiced any party, Ruiz asserts in that brief that the Amended Petition was filed after necessary clerical corrections were identified in the Petition. (Supp. Brief at p. 5.) In support of the supplemental brief, Ruiz’s counsel, Lady Luna (attorney Luna), states that a copy of the Amended Petition incorporating the changes was provided to defense counsel who confirmed that Macrito and Pueblo (collectively, Defendants) would not oppose the Amended Petition provided it reflected the changes discussed by the parties. (Luna Dec., ¶¶ 4-5.)

Though the Amended Petition was filed and served after the deadline for notice and service of that petition as set forth in the Ex Parte Order, the absence of any opposition and the information presented in the supplemental brief is sufficient to show or suggest that the late filing of the Amended Petition does implicate due process concerns as to Defendants.

The Amended Petition describes the events that occurred on January 22, 2023, involving R Hurtado, J Hurtado, and Defendants, and asserts that “[t]his is a catastrophic medical negligence case arising from the failure to timely identify and report an acute basilar artery clot on January 22, 2023, after [R] Hurtado presented to St. John’s Regional Medical Center and underwent head CT imaging that defendant radiologist ... Macrito, whose group is Pueblo ..., interpreted as showing in ‘no acute findings.’” (Amended Petition, ¶ 5.) R Hurtado suffered “an acute ischemic brainstem stroke involving the left midbrain and pons with right hemiplegia, later-confirmed occlusion of the distal basilar artery, dysphagia requiring PEG placement, profound functional dependence, and permanent neurologic injury that has left her nonambulatory, severely dysarthric, contractured, incontinent, and dependent on others for essentially every activity of daily life.” (Amended Petition, ¶ 6.)

R Hurtado received care and treatment for the injuries described in the Amended Petition and above, which included an examination, hospitalization, imaging and laboratory studies, prescriptions at St. John’s Regional Medical Center, in-home health services from GMM Home Health Care, neurology consultation and treatment by Behzad Ourmazdi, M.D., and speech and occupational therapy. (Amended Petition, ¶ 7.)

The Amended Petition also asserts that R Hurtado has not recovered completely from the effects of their injuries, and that the permanent injuries from which R Hurtado has not recovered include facial droop, difficulty speaking, confusion, loss of

movement, loss of vision, trouble with balance and coordination, paralysis in the right side of the body, and inability to move right arm and right leg independently. (Amended Petition, ¶ 8(c).)

Attached to the Amended Petition is a letter dated November 8, 2025, (the Amos Letter) authored by Edwin C. Amos, M.D., (Dr. Amos) of Santa Monica Neurological Consultants. (Amended Petition, attachment 8.) The Amos Letter shows that Dr. Amos performed a medical evaluation of R Hurtado ostensibly on November 7, 2025, at the home of R Hurtado in Oxnard, California. (Amended Petition, attachment 8 at pdf p. 12.) That letter also states that, at the time, R Hurtado was 74 years of age. (Ibid.) The evaluation was attended by J Hurtado, Ruiz, Drs. Sanossian and Stenehjerm, and a nurse observer who made an audio recording of the examination. (Ibid.) A certified Spanish language interpreter translated the evaluation from English. (Ibid.)

Information appearing in the Amos Letter shows that R Hurtado was admitted to the hospital on January 22, 2023, and later found to have experienced a posterior circulation stroke which was first noted on an MRI scan of the brain. (Amended Petition, attachment 8 at pdf p. 16.) Imaging studies revealed occlusion of the basilar artery, and ischemic changes in the left posterior circulation with bilateral chronic microvascular ischemic changes. (Ibid.) R Hurtado exhibited neurological deficits including right facial weakness, disconjugate extraocular movements, dysarthria, and right hemiparesis, and was treated with anticoagulant therapy. (Ibid.)

The Amos Letter states that R Hurtado could not provide her history during the evaluation conducted by Dr. Amos, but appeared to comprehend reasonably well in Spanish and at times when spoken to in English. (Amended Petition, attachment 8 at pdf p. 12.) Ruiz, who identified herself as R Hurtado's daytime caregiver, provided much of R Hurtado's history with the exception of a list of R Hurtado's current medication. (Ibid.)

Ruiz reported to Dr. Amos that R Hurtado uses durable medical equipment; is incontinent; can feed herself using her left hand; can chew soft solids and swallow liquids but sometimes has difficulty; and that R Hurtado's medications are crushed and mixed with applesauce. (Amended Petition, attachment 8 at pdf p. 12.) A person is always present with R Hurtado and sleeps in a bed in R Hurtado's room (Ibid.) Ruiz transfers R Hurtado from a bed to a wheelchair and from a wheelchair to a car seat when R Hurtado is transported in a standard vehicle. (Ibid.) Other family members also participate in R Hurtado's home care. (Ibid.)

Ruiz also reported that R Hurtado inconsistently comprehends language in Spanish and appears to be able to communicate in Spanish but is severely dysarthric which makes it difficult to understand what R Hurtado is saying. (Amended Petition, attachment 8 at pdf p. 13.) Ruiz was not sure whether R Hurtado is reliably oriented to her situation, and believes R Hurtado's vision is impaired. (Ibid.) Ruiz further stated to Dr. Amos that R Hurtado reports right side pain, headaches, variable symptoms of dizziness which last throughout the day, and irregular sleep patterns. (Ibid.)

The Amos Letter also shows that R Hurtado was hospitalized for four or five months prior to Dr. Amos' evaluation with a pneumonia diagnosis. (Amended Petition, attachment 8 at pdf p. 113.) R Hurtado had not recently required emergency room evaluation or treatment; has not experienced seizures; and is attended by a primary care physician, a neurologist, and other physicians. (Ibid.)

The Amos Letter lists R Hurtado's past medical, family, and social history, and indicates that Dr. Amos reviewed R Hurtado's medical records. (Amended Petition, attachment 8 at pdf pp. 13-14 & 15.) During the physical examination of R Hurtado by Dr. Amos, R Hurtado appeared afebrile; her chest was clear to auscultation bilaterally; she had a regular heart rate and rhythm without murmur; and her abdomen was soft and non-tender. (Id. at pdf p. 14.) R Hurtado's right arm was held in flexion and exhibited an early contracture; her right hand was in a fistled posture with early contractures of the fingers; and the right lower extremities were in extension with foreshortening of the Achilles tendons. (Ibid.)

Dr Amos' neurological examination showed that R Hurtado was alert and able to follow one-step commands variably, appeared to comprehend Spanish reasonably well, and was noted to respond at times to commands in English. (Amended Petition, attachment 8 at pdf p. 14.) R Hurtado exhibited intact right/left orientation. (Ibid.) Serial testing of cranial nerves numbers II-XII by Dr. Amos revealed some difficulty with identifying objects in the right visual field; that extraocular

movements were restricted in the vertical plane; that horizontal movements were disconjugate; that the pupils were 2-3 mm and reactive to light bilaterally; that the facial strength was symmetrical and full; and that R Hurtado was severely dysarthric and could not voluntarily protrude her tongue. (Ibid.)

The Amos Letter further states that motor tone was increased more in R Hurtado's right than left upper extremities, and strength was 1/5 in the proximal right upper extremity and 0/5 in the intrinsic muscles of the right hand. (Amended Petition, attachment 8 at pdf p. 14.) R Hurtado's right lower extremity exhibited 3/5 proximal strength in the right foot, and the left upper extremity had full strength. (Ibid.)

The diagnostic impressions of Dr. Amos include a posterior circulation stroke on January 22, 2023, with residual neurological deficits; a history of coronary artery disease with myocardial infarction; and a history of congestive heart failure, atrial fibrillation, diabetes, hypertension, hyperlipidemia, obstructive sleep apnea, pancreatitis, asthma, and a ground level fall in August 2022 with closed head trauma. (Amended Petition, attachment 8 at pdf p. 15.) Dr. Amos reports that R Hurtado has persistent neurological deficits, has reached maximum neurological improvement, and will require 24 hours per day custodial care and periodic outpatient neurological follow up for the balance of her life. (Amended Petition, attachment 8 at pdf p. 16.)

Ruiz has made a careful and diligent inquiry and investigation into the facts and circumstances of the incident or accident in which R Hurtado was injured; the responsibility for the incident or accident; and the nature, extent, and seriousness of R Hurtado's injuries. (Amended Petition, ¶ 9.) Ruiz understands that if the compromise proposed in the Amended Petition is approved by the court and consummated, R Hurtado will never be able to recover any more compensation from the settling defendants named in that petition if R Hurtado's injuries turn out to be more serious than they now appear. (Ibid.)

Item 10 of the Amended Petition requires Ruiz to state the amount Defendants have offered to pay R Hurtado to settle the claim described in that petition. (Amended Petition, ¶ 10.) Though item 10 states that the amount Defendants have offered to pay R Hurtado totals \$2.75 million, the terms of the settlement are stated in the Amended Petition as "cash plus future periodic payments with the total sum cost of \$2,555,000...." (Amended Petition, ¶ (10)(a), (b), & (c).) It appears to the court that this discrepancy is a result of the inclusion of a payment Defendants have agreed to make to J Hurtado in the amount of \$195,000, in the amount Defendants have agreed to pay to R Hurtado. (Amended Petition, ¶¶ 11(b)(1) & attachment 10(c).)

Though the Amended Petition must fully disclose the amount Defendants have agreed to pay to R Hurtado, and includes, for that purpose, a separate item for any amounts Defendants have offered to pay to a person other than R Hurtado, the supplemental brief asserts, in a general and conclusory manner, that the discrepancy or inconsistency described above is a result of the form's structure. (Supp. Brief at p. 2.)

The Amended Petition shows that, as a direct and proximate result of the injuries sustained by R Hurtado, her husband, J Hurtado, asserts a derivative claim for loss of consortium, including the loss of companionship, comfort, care, assistance, and society of his spouse, as well as related future damages. (Amended Petition, attachment 11(b)(6).) Pursuant to the terms of the settlement, the amount of \$195,000 is to be allocated to J Hurtado for that claim. (Ibid.) The Amended Petition asserts that the allocation reflects the nature and extent of each plaintiff's respective damages and was agreed upon as part of the compromise. (Ibid.)

The Amended Petition further states that Ruiz, who is not a named plaintiff in this action, does not have a claim against the recovery of R Hurtado other than for reimbursement of fees or expenses paid by petitioner and listed under item 14 of that petition. (Amended Petition, ¶ 11(b)(2) & (3).)

The Amended Petition and the attached "Addendum to Settlement Agreement and Release" (the Addendum) show that the amount of \$969,123.17 will be disbursed to "Brian O'Connor, Client Rosa Hurtado's Trust account for attorney fees, costs, and liens"; that the amount of \$885,876.83 will be disbursed to "Secured Futures FBO Rosa Munoz Hurtado" to fund a "Secured Futures Pooled Special Needs Trust" (the Special Needs Trust); and that the amount of \$700,000 will be disbursed to MetLife Assignment Company, Inc. to fund future periodic payments. (Amended Petition, ¶¶ 10(c), 18(b)(3)-(4), & attachments 10(c), 18(b)(3), & 18(b)(4).)

The Amended Petition and supplemental brief do not appear to dispute that the Special Needs Trust is subject to the provisions of Probate Code section 3604, which provides: “If a court makes an order under [Probate Code] [s]ection 3602 or 3611 that money of a minor or person with a disability be paid to a special needs trust, the terms of the trust shall be reviewed and approved by the court and shall satisfy the requirements of this section. The trust is subject to continuing jurisdiction of the court, and is subject to court supervision to the extent determined by the court. The court may transfer jurisdiction to the court in the proper county for commencement of a proceeding as determined under Section 17005.” (Prob. Code, § 3604; see also Amended Petition, ¶ 18(b)(4); Supplemental Brief at p. 3 [stating that the Amended Petition “seeks the trust-funding order” pursuant to section 3604].)

The Special Needs Trust may be established and continued under Probate Code section 3604 “only if the court determines all of the following:

“(1) That the minor or person with a disability has a disability that substantially impairs the individual's ability to provide for the individual's own care or custody and constitutes a substantial handicap.

“(2) That the minor or person with a disability is likely to have special needs that will not be met without the trust.

“(3) That money to be paid to the trust does not exceed the amount that appears reasonably necessary to meet the special needs of the minor or person with a disability.” (Prob. Code, § 3604, subd. (b)(1)-(3).)

Notwithstanding whether the available information and evidence indicates that R Hurtado has a disability that substantially impairs their ability to provide for their own care or custody and constitutes a substantial handicap, the supplemental brief notes the concern raised in the court's tentative ruling that Amended Petition does not, apart from the general information and observations contained in the Amos Letter, present any information or evidence describing or itemizing the particular needs of R Hurtado (such as what, if any, surgery, transportation, or specialized care, equipment, or supplies they will or may require) sufficient to support a finding as to whether R Hurtado is likely to have special needs that will not be met without the Special Needs Trust, and why. The Amended Petition also does not present facts sufficient to support a finding that the money to be paid to the Special Needs Trust does not exceed the amount reasonably necessary to meet the special needs of R Hurtado.

In response to the matters raised in the court's tentative ruling as further discussed above, Ruiz submits with their supplemental brief, a “Life Care Plan” (the Plan) dated March 11, 2026, and prepared by Neil Ghodadra, M.D. (Dr. Ghodadra). (Luna Dec., exhibit A.) Dr. Ghodadra is described in the Plan as a board certified orthopedic surgeon and certified life care planner. (Ibid.) The Plan consists of 41 pages and includes, among other material, an “Overview”; a chronological summary and synopsis of the medical records of R Hurtado including diagnostics; a description of Dr. Ghodadra's March 6, 2026, interview with Ruiz; a lengthy discussion of R Hurtado's past and recent medical and other history; Dr. Ghodadra's opinions; a description of R Hurtado's future medical requirements; a cost/vendor survey; a cost analysis; and summary projection tables. (Ibid.)

Absent from the supplemental brief and the declaration of attorney Luna is any reasoned factual argument, supported by appropriate citations to the Plan, explaining where any information sufficient to support a finding that R Hurtado is likely to have special needs that will not be met without the Special Needs Trust, or that the money to be paid to the Special Needs Trust does not exceed the amount that appears reasonably necessary to those special needs, appears in the Plan, or why that information is sufficient to support those findings. The absence of reasoned argument supported by appropriate citations to the relevant record forces the court to expend scarce judicial resources undertaking its own review of each of the 41 pages of the Plan to locate relevant information or evidence, and to determine whether that information or evidence supports the findings required under subdivision (b) of Probate Code section 3604, and why. For these and all further reasons discussed above, Ruiz has not met their “burden of proving every fact essential to the relief requested.” (Corns v. Miller (1986) 181 Cal.App.3d 195, 200.)

Even if the supplemental brief could present reasoned argument showing why the Plan is sufficient to support the findings described in Probate Code section 3604, subdivision (b), in circumstances such as here where “money or other property is to

be paid or delivered for the benefit of a ... person with a disability under a compromise, covenant, order or judgment, and there is no ... conservatorship of the estate of the person with a disability, the remaining balance of the money and other property (after payment of all expenses, costs, and fees as approved and allowed by the court under Section 3601) shall be paid, delivered, deposited, or invested as provided in" Prob. Code, § 3610 et seq. (Prob. Code, § 3610.)

"In any case described in [Probate Code] [s]ection 3610, the court making the order or giving the judgment referred to in Section 3600 shall, upon application of counsel for the ... person with a disability, order ... [¶] [a]fter a hearing by the court, that the remaining balance of any money and other property be paid to a special needs trust established under Section 3604 for the benefit of the ... person with a disability. Notice of the time and place of the hearing and a copy of the petition shall be mailed to the State Director of Health Care Services, the Director of State Hospitals, and the Director of Developmental Services at the office of each director in Sacramento at least 15 days before the hearing." (Prob. Code, § 3611, subd. (c).)

The supplemental brief does not dispute, and appears to concede, that notice of the time and place of the hearing and a copy of the Petition or Amended Petition were not mailed to the State Director of Health Care Services, the Director of State Hospitals, and the Director of Developmental Services at the offices described in, or in the manner or time prescribed by, subdivision (c) of Probate Code section 3611.

The court is also not persuaded by the points advanced by Ruiz response to the issues raised in the court's tentative ruling as to whether the notice provisions of Probate Code section 3611 apply under the circumstances present here. For example, Probate Code section 3604 expressly authorizes the departments to whom notice must be provided to petition the court for an order terminating a special needs trust established under that section. (See also Prob. Code, § 3604, subd. (d) [requiring the court order to "include a provision that all statutory liens in favor of the State Department of Health Care Services, the State Department of State Hospitals, the State Department of Developmental Services, and any county or city and county in this state shall first be satisfied.].) In order to file such a petition, those departments must be first given notice that a special needs trust was established under section 3604.

The supplemental brief also does not appear to dispute that the Special Needs Trust must comply with California Rules of Court, rule 7.903. (See Supp. Brief at pp. 4-5 [asserting that the trust instrument satisfies that rule].) Neither the Amended Petition nor the supplemental brief explain, with appropriate reasoned argument, why the Special Needs Trust fully complies with rule 7.903.

For example, even if the supplemental brief could show why the terms of the Special Needs Trust comply with California Rules of Court, rule 7.903(c)(1) through (6) (and the court presently makes no findings in this regard), that rule also requires that trust be "subject to the continuing jurisdiction of the court[.]" (Cal. Rules of Court, rule 7.903(b).) "Continuing jurisdiction of the court" under [rule 7.903](b) means and refers to the court's continuing subject matter jurisdiction over trust proceedings under division 9 of the Probate Code (Prob. Code, § 15000 et seq.)." (Cal. Rules of Court, rule 7.903(a)(2).) "The court may exercise jurisdiction in proceedings under [division 9 of the Probate Code] on any basis permitted by Section 410.10 of the Code of Civil Procedure." (Prob. Code, § 17004.)

The present record reflects, without dispute, that the Special Needs Trust was established by Secured Futures, Inc., a Pennsylvania nonprofit corporation (the corporation), and that the corporation is also the Trustee of the Special Needs Trust. (Amended Petition, attachment 18(b)(3) at pdf p. 99.) The Amended Petition and the supplemental brief present no information or evidence showing "the usual place where the day-to-day activity of the trust is carried on" by the corporation, or why the Special Needs Trust has "its principal place of administration in this state[.]" (Prob. Code, § 17002 & § 17003, subds. (a), (b).) Instead, the available evidence and information suggests that the principal place of administration of the Special Needs Trust is not in this state. (See, e.g., Prob. Code, § 17002, subd. (b)(1).)

Furthermore, the absence of information or evidence showing why the Special Needs Trust has its principal place of administration in this state gives rise to a question of whether the corporation that has ostensibly accepted the trusteeship of that trust is subject to the jurisdiction of the court under division 9 of the Probate Code. (Prob. Code, § 17003, subd. (a).)

Though there is presently no information to suggest that any trustee of the Special Needs Trust will refuse, without good cause, to make payments from that trust, or that a petition may be filed for an order terminating that trust, the Amended Petition and supplemental brief must demonstrate why, under the circumstances present here, the Special Needs Trust and its Trustee are subject to the continuing jurisdiction of the court or the court's supervision as required by applicable court rules further discussed above, and that entry of an order pursuant to California Rules of Court, rule 7.903, is appropriate.

The supplemental brief includes information ostensibly offered to show why time is of the essence with respect to the approval of the settlement of R Hurtado's claims. Ruiz also asserts that delay will affect the ability of R Hurtado's family to pay for R Hurtado's care. Considering those assertions, the court questions why all relevant information, including the Plan which had been completed at the time the Amended Petition was submitted to the court, "that had any bearing upon the reasonableness of the compromise was not disclosed in the petition, as required by rule 7.950 of the California Rules of Court." (*Espericueta v. Shewry* (2008) 164 Cal.App.4th 615, 627.)

Moreover, court approval of a compromise or settlement of the claim of an incapacitated party ensures that the interests of that party "have been fully and fairly considered." (*County of Shasta v. Caruthers* (1995) 31 Cal.App.4th 1838, 1847.) Though the court acknowledges the concerns raised in the supplemental brief, those concerns do not exempt a petitioner from the requirement to fully and appropriately disclose all information bearing on the reasonableness of any settlement that provides for money of a person with a disability to be paid to a trust from which payments will be made for that person's special needs.

The court has provided Ruiz with a full and fair opportunity to submit a supplemental brief addressing, explaining, or correcting the matters further discussed herein. Under the totality of the circumstances present here as described in the Amended Petition and supplemental brief of Ruiz, the court is not persuaded that the entry of an order approving the funding of a special needs trust not in this state that is managed and administered by an out of state trustee meets Probate Code requirements. For these and all further reasons discussed above, the court will deny the Amended Petition. The court's ruling herein is without prejudice to the filing and service of an appropriate petition by Ruiz in the future.

Judges

Judge Donna D. Geck

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